

Smt. Vinita Verma v. State of U.P. & Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 5 March 2025 · 2025:AHC-LKO:13371-DB · WRIT - C No. - 2062 of 2025 · **Petition disposed of; licensee to consider online indemnity application under clause 4.4 within three weeks as per law.**

HEADNOTE

Occupant-wife amid matrimonial discord may apply online with an indemnity bond under Electricity Supply Code, 2005 clause 4.4 for consideration of a new connection even where the existing connection stands in the owner-husband's name; the court directed consideration as per law within three weeks, analogously to tenant-occupier cases, without prejudice to the owner's property rights.

FACTUAL SUMMARY

Smt. Vinita Verma sought a writ for electricity at premises owned by her husband (opposite party no.4), in whose name the existing connection stood, amid matrimonial discord. She claimed to reside there. The corporation's counsel said that if she applied online with an indemnity bond, the application would be considered irrespective of the dispute and the owner's connection, provided she resided in the premises and there was no other legal impediment, citing clause 4.4 of the Electricity Supply Code, 2005 and the tenant-occupier analogy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Where the petitioner-wife resides in premises whose electricity connection stands in the owner-husband's name amid matrimonial discord, the licensee is to consider her online application for a new connection under Electricity Supply Code, 2005 clause 4.4 on submission of an indemnity bond, on the same footing as a tenant in possession where the landlord does not cooperate, and to decide as per law within three weeks of completing those formalities, without prejudice to the owner's property rights. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ENTITLEMENT TO A NEW CONNECTION

application to be considered and decided as per law after online application and indemnity bond ¶ 3

NOT DECIDED — PROPERTY RIGHTS OF OPPOSITE PARTY NO.4

disposal without prejudice to rights, if any, of the private opposite party to the property ¶ 3